

Rajkumar v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 3 April 2023 · WRIT - C No. 10827 of 2023 · **Writ disposed of as withdrawn with liberty to pursue the Clause 7.10 remedy.**

HEADNOTE

A writ petition on an electricity bill and a defective meter was disposed of as withdrawn after the petitioner did not dispute that Clause 7.10 of the U.P. Electricity Supply Code, 2005 supplied the remedy, with liberty to invoke that clause.

FACTUAL SUMMARY

Rajkumar filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and four others. The dispute he raised concerned an electricity bill and a defective meter. At the hearing, counsel for respondent nos. 3, 4 and 5 submitted that a remedy was available under Clause 7.10 of the U.P. Electricity Supply Code, 2005. Counsel for the petitioner did not dispute that submission.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

Bill and defective-meter grievance left to Clause 7.10

HOLDING

Where counsel for the licensee-respondents submits that Clause 7.10 of the U.P. Electricity Supply Code, 2005 furnishes the remedy for an electricity-bill and defective-meter dispute, and the petitioner does not dispute that submission, the writ is disposed of as withdrawn with liberty to take that remedy. ¶ 2-4

PRINCIPLE TAGS

disputed-bill-relegated-to-cgrf-clause-7.10 The electricity-bill and defective-meter grievance was not decided on merits. On an undisputed submission that Clause 7.10 of the Supply Code, 2005 provided the remedy, the writ was disposed of as withdrawn with liberty to pursue it. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LIABILITY ON THE ELECTRICITY BILL AND THE DEFECTIVE-METER COMPLAINT

Left open for the Clause 7.10 remedy; the writ was withdrawn without a merits decision. ¶ 2-4